New Jersey Assembly Bill 5009 (2024)

(2024) NJ A 5009 | Alixon Collazos-Gill (D-027) and 6 Co-sponsors | Failed - Adjourned | Assembly Science, Innovation and Technology...

Packaging Product Stewardship Act

Relates to the Packaging Product Stewardship Act; concerns the disposal of packaging and paper products.

Versions:

Substituted - May 8, 2025

Added | ~~Deleted~~ |

ASSEMBLY COMMITTEE SUBSTITUTE FOR

ASSEMBLY, No. 5009

STATE OF NEW JERSEY

221st LEGISLATURE

ADOPTED MAY 8, 2025

Sponsored by:

Assemblywoman ALIXON COLLAZOS-GILL

District 27 (Essex and Passaic)

Assemblywoman GARNET R. HALL

District 28 (Essex and Union)

Assemblyman JAMES J. KENNEDY

District 22 (Somerset and Union)

SYNOPSIS

"Packaging and Paper Product Stewardship Act."

CURRENT VERSION OF TEXT

Substitute as adopted by the Assembly Environment, Natural Resources, and Solid Waste Committee.

An Act concerning the disposal of packaging and paper products, amending P.L.1970, c.39 and P.L.1991, c.520, and supplementing Title 13 of the Revised Statutes.

Be It Enacted by the Senate and General Assembly of the State of New Jersey:

1. (New section) Sections 1 through 17 of P.L. , c. (C.) (pending before the Legislature as this bill) shall be known and may be cited as the "Packaging and Paper Product Stewardship Act."

2. (New section) As used in sections 1 through 17 of P.L. , c. (C.) (pending before the Legislature as this bill):

"Commissioner" means the Commissioner of Environmental Protection.

"Composting" means any process by which certified compostable products along with food and other organic wastes are collected and subsequently processed by a commercial compost facility or in a home compost pile into stable and mature finished product. "Composting" shall not include anaerobic digestion or wastewater treatment of biosolids.

"Covered product" means a packaging product or paper product.

"Department" means the Department of Environmental Protection.

"Environmentally sound management practices" means policies or procedures for the collection, storage, transportation, reuse, and recycling or disposal of discarded covered products, which policies or procedures are established by the department and implemented by a producer or a group of producers to: ensure compliance with all applicable federal, State, and local laws, rules, regulations, and ordinances; protect human health and the environment; and address matters including, but not limited to, adequate recordkeeping and accurate tracking and documentation of the collection, transportation, reuse, and recycling or disposal of discarded covered products within the State.

"Non-participating producer" means a producer who is not a participant in a product stewardship plan adopted and administered by a producer responsibility organization pursuant to P.L. , c. (C.) (pending before the Legislature as this bill).

"Overburdened community" means the same as the term is defined in section 2 of P.L.2020, c.92 (C.13:1D-158).

"Packaging product" means any product or material designed and used for the containment, protection, handling, delivery, or presentation of another product, including, but not limited to, a food or beverage item, and that is sold, offered for sale, imported, or distributed in the State. "Packaging product" includes: primary packaging that constitutes a sales unit at the point of purchase; secondary packaging that is used to group other products for multiunit sale or is intended to brand or display another product; tertiary packaging that is used either for the transportation and distribution of another product directly to the consumer or for the protection of the product during transport; service packaging, including carry-out bags, bulk goods bags, take-out bags, home delivery food service packaging, and prescription bottles, which are designed and intended to be filled at the point of sale; beverage containers; ancillary elements that are attached to another product and that serve a packaging function; and any other product, whether constituted of paper, plastic, glass, metal, a mixture thereof, or any other material, which serves a packaging function. "Packaging product" does not include a refillable keg used for alcoholic beverages, or a refillable water jug used in water coolers.

"Paper product" means a product made primarily from wood pulp or other cellulosic fibers, except that "paper product" does not include bound books or products that are not recyclable or compostable because of the unsafe or unsanitary nature of the product.

"Participating producer" means a producer who is a named participant in a producer responsibility organization's product stewardship plan approved pursuant to section 8 of P.L. , c. (C.) (pending before the Legislature as this bill).

"Producer" means a person who is required to join a producer responsibility organization or develop and implement a product stewardship plan pursuant P.L. , c. (C.) (pending before the Legislature as this bill), as determined pursuant to section 3 of P.L. , c. (C.) (pending before the Legislature as this bill).

"Producer responsibility organization" or "PRO" means an organization that is exempt from taxation under Section 501(c)(3) of the federal Internal Revenue Code of 1986 and is formed for the purpose of implementing a product stewardship plan to meet the requirements of P.L. , c. (C.) (pending before the Legislature as this bill).

"Product stewardship plan" or "stewardship plan" means the plan developed pursuant to section 7 of P.L. , c. (C.) (pending before the Legislature as this bill), and which provides for the environmentally sound life-cycle management, by participating producers, of covered products that are sold, offered for sale, imported, or distributed by such producers in this State.

"Recycling" means a process by which materials which would otherwise become solid waste are collected, separated or processed, and returned to the economic mainstream in the form of raw materials or products, including the conversion of biodegradable materials to a fuel source through anaerobic digestion. "Recycling" shall not include: (1) energy recovery or energy generation by any means other than anaerobic digestion, including, but not limited to, combustion, incineration, pyrolysis, gasification, solvolysis, or waste-to-fuel; (2) any chemical conversion process; or (3) landfill disposal.

"Recycling center" means the same as the term is defined in section 2 of P.L.1987, c.102 (C.13:1E-99.12).

"Recycling rate" means the amount of recyclable covered products, in aggregate or by individual covered product type, recycled in a calendar year, divided by the total amount of recyclable covered products sold or distributed into the State.

"Refill" means the continued use of a packaging product by a consumer through a system that is: (1) intentionally designed and marketed for repeated filling of a packaging product to reduce demand for new production of the packaging product; (2) supported by adequate logistics and infrastructure to provide convenient access for consumers; and (3) compliant with all applicable federal, State, and local statutes, rules, ordinances, and other laws governing health and safety.

"Responsible end market" means a materials market that: (1) reuses, recycles, composts, converts organic material to a fuel source through anaerobic digestion, or otherwise recovers materials and disposes of contaminants in a manner that protects the environment and minimizes risks to public health and worker health and safety; (2) complies with all applicable federal, state, and local statutes, rules, ordinances, and other laws governing environmental, health, safety, and financial responsibility; (3) possesses all requisite licenses and permits required by a federal or State agency or political subdivision; and (4) if the market operates in the State, manages waste according to the to the goals of the State Recycling Plan developed pursuant to the "New Jersey Statewide Mandatory Source Separation and Recycling Act," P.L.1987, c.102 (C.13:1E-99.32 et seq.).

"Reuse" means the return of a covered product back into the economic stream for use in the same kind of application intended for the original covered product, without effectuating a change in the original composition or identity of the product or the components thereof.

"Service provider" means an entity that provides collecting, transferring, transporting, sorting, processing, recovering, preparing, reuse, recycling, composting, or other waste-reduction services for covered products. A State or local governmental entity that provides, or that contracts or otherwise arranges with, another party to provide such services for covered products within its jurisdiction may be a service provider regardless of whether it provided, contracted for, or otherwise arranged for similar services before the approval of the applicable product stewardship plan.

"Small producer" means a producer that: (1) is a nonprofit organization; (2) is a public entity; (3) has a gross revenue of less than $5 million for the producer's most recent fiscal year; (4) sold in or into the State less than one metric ton of covered products for use in the State in the most recent calendar year; (5) is a manufacturer of a beverage sold in a beverage container, and sold in or into the State less than five metric tons of packaging products, including, but not limited to, secondary and tertiary packaging for beverage containers, for use in the State in the most recent calendar year; (6) is a restaurant, food cart, or other similar business establishment that primarily sells to members of the public food that is generally intended to be consumed immediately and without the need for further preparation, either on or off the premises; or (7) operates a single retail sales establishment, has no online sales, and is not supplied or operated as part of a franchise or a chain.

3. (New section) a. For the purposes of sections 1 through 17 of P.L. , c. (C.) (pending before the Legislature as this bill), a person shall be considered a producer if the person meets the criteria provided in subsection b. of this section for packaging products or subsection c. for paper products.

b. (1) A person shall be considered a producer of a packaging product if the person manufactures a packaging product and owns, or is the licensee of, the brand or trademark under which the packaging product is used in a commercial enterprise, sold, offered for sale, or distributed in the State.

(2) If there is no person in the State who is the producer pursuant to paragraph (1) of this subsection, the producer of the packaging product shall be the owner, or, if the owner is not in the State, the exclusive licensee of, a brand or trademark under which the packaging product is used in a commercial enterprise, sold, offered for sale, or distributed in the State. As used in this paragraph, "licensee" means a person holding the exclusive right to use a trademark or brand in the State in connection with the manufacture, sale, or distribution of the packaging product.

(3) If there is no person in the State who is the producer pursuant to paragraphs (1) or (2) of this subsection, the producer of the packaging product shall be the person who sells, offers for sale, or distributes the packaging product in or into the State.

c. (1) A person shall be considered the producer of a paper product that is a magazine, newspaper, catalog, telephone directory, or other similar publication if the person is the publisher of the publication.

(2) For all other paper products, the producer shall be:

(a) the person that manufactures the paper product under the manufacturer's own brand;

(b) if the paper product is manufactured by a person other than the brand owner, the licensee of a brand or trademark under which the paper product is introduced into the State, whether or not the trademark is registered in the State, or

(c) if there is no person described in subparagraphs (a) or (b) of this paragraph located in the United States, the person that imports the paper product into the United States for use in a commercial enterprise that introduces the item into the State.

d. For the purposes of this section, the sale of a covered product shall be deemed to occur in the State if the covered product is delivered to the purchaser in the State.

4. (New section) a. Except as provided in subsection h. of this section, no later than one year after the effective date of P.L. , c. (C.) (pending before the Legislature as this bill), each producer shall join a producer responsibility organization. Upon the formation of the producer responsibility organization, the producer responsibility organization's participating producers shall elect a governing body, and the governing body shall submit an application to the department demonstrating that the producer responsibility organization meets the requirements for approval pursuant to P.L. , c. (C.) (pending before the Legislature as this bill).

b. The department shall initially approve, for the purposes of P.L. , c. (C.) (pending before the Legislature as this bill), the formation of one producer responsibility organization.

c. (1) Commencing January 1, 2029, producers may apply to the department to establish an additional producer responsibility organization.

(2) The department may approve the establishment of one or more additional producer responsibility organizations if the department, in consultation with the initial PRO approved pursuant to subsection b. of this section, determines that additional producer responsibility organizations are necessary to accomplish the goals of P.L. , c. (C.) (pending before the Legislature as this bill). A producer responsibility organization approved pursuant to this subsection shall comply with the requirements of P.L. , c. (C.) (pending before the Legislature as this bill), including the requirements of subsections a. and d. of this section.

(3) Upon approval of the establishment of an additional producer responsibility organization, the department shall determine appropriate timelines for the organization's compliance with the provisions of P.L. , c. (C.) (pending before the Legislature as this bill), including a timeline for the submission of its product stewardship plan pursuant to section 7 of P.L. , c. (C.) (pending before the Legislature as this bill).

d. Each producer responsibility organization shall:

(1) comply with the requirements of P.L. , c. (C.) (pending before the Legislature as this bill) and the rules and regulations adopted pursuant thereto;

(2) have a governing body that consists of participating producers representing the covered products placed in the market by those producers, and, if deemed by the participating producers to be warranted, include nonvoting members who represent material trade associations and companies; and

(3) demonstrate, to the department's satisfaction, that it has adequate financial responsibility and financial controls in place, including fraud prevention measures and an auditing schedule, to ensure the proper management of the producer responsibility organization's funds.

e. If the department determines that a producer responsibility organization approved pursuant to this section no longer meets the requirements of P.L. , c. (C.) (pending before the Legislature as this bill) or has failed to implement and administer an approved product stewardship plan in a manner that effectuates the purposes of P.L. , c. (C.) (pending before the Legislature as this bill), the department shall revoke the producer responsibility organization's approval.

f. Except as otherwise provided in subsection h. of this section, upon approval of the first producer responsibility organization's product stewardship plan, or commencing five years after the effective date of P.L. , c. (C.) (pending before the Legislature as this bill), whichever is sooner, a producer shall be prohibited from selling, offering for sale, importing, or distributing covered products in or into the State unless the producer is a participating producer.

g. Commencing two years after the effective date of P.L. , c. (C.) (pending before the Legislature as this bill), any entity that becomes a producer shall, within six months of qualifying as a producer, become a participating producer in an approved producer responsibility organization, or submit a product stewardship plan pursuant to subsection h. of this section, and shall comply with the provisions of P.L. , c. (C.) (pending before the Legislature as this bill).

h. Notwithstanding any provisions of P.L. , c. (C.) (pending before the Legislature as this bill) to the contrary, a producer may comply with the provisions of P.L. , c. (C.) (pending before the Legislature as this bill) without joining a producer responsibility organization. However, the non-participating producer shall be responsible for complying with the provisions of P.L. , c. (C.) (pending before the Legislature as this bill), including, but not limited to:

(1) developing and implementing a plan that complies with all of the applicable requirements of a product stewardship plan, including, but not limited to, the review, update, and approval requirements set forth in sections 7 and 8 of P.L. , c. (C.) (pending before the Legislature as this bill).

(2) fully covering the costs associated with complying with the provisions of P.L. , c. (C.) (pending before the Legislature as this bill) and implementing the provisions of an approved product stewardship plan, to the same extent as a participating producer, based on the non-participating producer's market share of covered products; and

(3) providing an annual report to the department pursuant to section 12 of P.L. , c. (C.) (pending before the Legislature as this bill).

i. Regardless of whether a producer participates in a producer responsibility organization, every producer in the State shall file its primary business address with the department, in a manner determined by the department. Each producer shall notify the department of any change in their business address within 30 days after the change. A producer responsibility organization may satisfy the requirements of this subsection, on behalf of a participating producer, by including the participating producer's primary business address in a product stewardship plan, update, or annual report submitted to the department, or by otherwise notifying the department of the participating producer's address or any change of address.

j. A producer responsibility organization approved pursuant to this section shall notify the department, within 30 days, of any the following:

(1) the end of any three-month period in which the producer responsibility organization unsuccessfully attempted to obtain a fee, records, or information from a participating producer, or received incomplete or incorrect records or information from a participating producer;

(2) the date on which a participating producer no longer participates in the producer responsibility organization's approved product stewardship plan; and

(3) any other instance of noncompliance by a participating producer.

5. (New section) a. No later than two years after the effective date of P.L. , c. (C.) (pending before the Legislature as this bill), the producer responsibility organization initially approved pursuant to subsection b. of section 4 of P.L. , c. (C.) (pending before the Legislature as this bill) shall prepare a Statewide needs assessment that is designed to determine the necessary steps and investments, in both the private and public sector, needed to effectuate the requirements of P.L. , c. (C.) (pending before the Legislature as this bill). In order to comply with the provisions of this section, the PRO may prepare either several needs assessments, with each assessment specific to one or more types of covered products, or a single, comprehensive needs assessment that includes reference to all covered products.

b. A Statewide needs assessment prepared under this section shall be updated every five years, or on a more frequent basis, as determined by the department to be necessary to ensure compliance with the requirements of P.L. , c. (C.) (pending before the Legislature as this bill).

c. The PRO may select, and contract with, a third-party approved by the department, including a State institution of higher education, in order to complete the needs assessment required by this section, or any update thereto.

d. A Statewide needs assessment, prepared pursuant to this section, shall:

(1) include an estimate of the costs of solid waste and recycling infrastructure and systems upgrades needed for producers to meet the requirements of section 6 of P.L. , c. (C.) (pending before the Legislature as this bill), for each of the ten years following the year in which the needs assessment or update thereto is prepared;

(2) be developed in collaboration and consultation with a diverse array of local governments, recycling service providers, and processors sufficient to reflect the distinct needs and challenges faced by urban, suburban, and rural communities of varying population densities and socioeconomic perspectives;

(3) be designed to inform a producer responsibility organization's budget and product stewardship plan; and

(4) include an evaluation of:

(a) existing State statutory provisions and funding sources related to market development and financial incentives which may be used to achieve the State's goals related to recycling and pollution prevention;

(b) the current recycling, composting, collection, and hauling systems in the State and a description of any needed enhancements to the system;

(c) the existing levels of access of multifamily residences to on-premises recycling facilities or capabilities, and the need to expand such access;

(d) the recycling capacity and infrastructure in the State and region and the ability for innovative and advanced technologies such as artificial intelligence and robotics to improve that capacity;

(e) current market conditions and the need to create viable and responsible end markets for recycled content in the State and region;

(f) the need for enhanced consumer education to promote, facilitate, and maximize consumer recycling, composting, reuse, and reduction activities;

(g) funding needs and actions necessary to achieve the requirements of P.L. , c. (C.) (pending before the Legislature as this bill), including the need to finance payments to recyclers, market incentive payments, or other payments necessary to achieve the requirements of P.L. , c. (C.) (pending before the Legislature as this bill);

(h) factors contributing to the rate of inbound contamination, and actions and investments needed and undertaken to avoid contamination and facilitate the recycling of covered products as necessary to ensure that the material meets quality standards for remanufacturing;

(i) the need to shift types of covered products that are unlikely to develop sustained viable and responsible end markets to a type of covered product that either has a viable and responsible end market or is likely to develop such a market;

(j) actions and investments necessary to modify the design of covered products so as to improve their reusability, recyclability, and compostability;

(k) the funding needed to implement the source reduction and recyclability requirements established in section 6 of P.L. , c. (C.) (pending before the Legislature as this bill), including, but not limited to, investments needed to develop infrastructure for reusable and refillable packaging and to provide consumers with convenient access to that infrastructure;

(l) the reusability of covered products currently utilized in the State and an assessment of means and methods by which the reusability of covered products could be increased; and

(m) any other actions or investments that the PRO believes would be effective in achieving the State's source reduction and recycling requirements in, or to otherwise effectuate the purposes of, P.L. , c. (C.) (pending before the Legislature as this bill).

e. A Statewide needs assessment prepared pursuant to this section shall not propose any investment in activities that would be contrary to the goals of the State Recycling Plan developed pursuant to the "New Jersey Statewide Mandatory Source Separation and Recycling Act," P.L.1987, c.102 (C.13:1E-99.32 et seq.) or that would be in violation of an agreement entered into pursuant that act.

f. A Statewide needs assessment may include specific elements that are designed to:

(1) expand access to, or otherwise improve, curbside collection services wherever feasible;

(2) expand access to drop-off recycling services or other mechanisms where curbside collection services are not feasible, or as necessary to supplement curbside collection services to meet the requirements of P.L. , c. (C.) (pending before the Legislature as this bill);

(3) expand access to collection services in public spaces;

(4) create, expand, or enhance on-premises access to recycling services for multifamily residences;

(5) fund, provide, or facilitate the efficient transport of covered products to centralized sorting facilities, brokers, and viable and responsible end markets;

(6) enhance and expand existing recycling infrastructure through the use of quality incentive payments, grants, and other mechanisms sufficient to cover the cost of separating, processing, baling, recycling, composting, remanufacturing, and transporting materials; or

(7) expand access to, or expand the State's capacity for, source separated, multi-stream recycling.

g. A Statewide needs assessment prepared pursuant to this section, and any updates thereto, shall be developed through a public process, which includes at least one public meeting at which the Advisory Council on Solid Waste Management established pursuant to section 7 of P.L.1970, c.39 (C.13:1E-7), and any interested members of the public, are given the opportunity to comment.

h. The process of preparing the Statewide needs assessment shall include contacting local governments to solicit information on how much funding is needed to implement effective packaging reduction, reuse and refill programs, and improve the recycling of covered products.

6. (New section) a. Each producer of a packaging product shall ensure that:

(1) the cumulative amount of single-use plastic packaging, measured by both average weight and average volume of packaging per product sold, offered for sale, imported, or distributed in or into the State by the producer has been reduced according to the following schedule, using the amount sold, offered for sale, imported, or distributed during the previous full calendar year prior to the effective date of P.L. , c. (C.) (pending before the Legislature as this bill) as a baseline:

(a) no later than two years after the approval of the producer's product stewardship plan pursuant to section 8 of P.L. , c. (C.) (pending before the Legislature as this bill), the amount shall be reduced to 90 percent of the baseline value;

(b) no later than four years after the approval of the producer's product stewardship plan, the amount shall be reduced to 80 percent of the baseline value;

(c) no later than six years after the approval of the producer's product stewardship plan, the amount shall be reduced to 70 percent of the baseline value;

(d) no later than eight years after the approval of the producer's product stewardship plan, the amount shall be reduced to 60 percent of the baseline value; and

(e) no later than 10 years after the approval of the producer's product stewardship plan, the amount shall be reduced to 50 percent of the baseline value.

(2) at least 10 percent of the source reduction required pursuant to subparagraph (e) of paragraph (1) of this subsection has been achieved by shifting a single use packaging product to a refillable or reusable product, or by eliminating a plastic component;

(3) commencing January 1, 2034, all packaging products sold, offered for sale, imported, or distributed in or into the State by the producer are either compostable or recyclable, as determined by the department; and

(4) commencing January 1, 2036, the packaging products sold, offered for sale, imported, or distributed in or into the State by the producer are recycled at a recycling rate of not less than 65 percent.

b. No later than one year after the effective date of P.L. , c. (C.) (pending before the Legislature as this bill), the department shall establish, by rules and regulations adopted pursuant to the "Administrative Procedure Act," P.L.1968, c.410 (C.52:14B-1 et seq.). interim targets and requirements to assist producers in meeting the requirements established by subsection a. of this section.

c. Commencing two years after the effective date of P.L. , c. (C.) (pending before the Legislature as this bill) and biennially thereafter, the department, in consultation with the Advisory Council on Solid Waste Management established pursuant to section 7 of P.L.1970, c.39 (C.13:1E-7), shall review relevant data to assess whether the recycling and source reduction requirements established pursuant to this section should be adjusted. The department shall make its determination and rationale available for public review by publishing a report on its Internet website. If the department determines that current unforeseen and anomalous market conditions, including, but not limited to, recycling infrastructure conditions, warrant an adjustment, the department may adopt rules and regulations to adjust the interim requirements established pursuant to subsection b. of this section.

d. A producer may be credited with source reduction efforts carried out during a five-year period prior to the baseline year established pursuant to subsection a. of this section, provided that the efforts are documented in an approved product stewardship plan in conformance with the provisions of subsection g. of section 7 of P.L. , c. (C.) (pending before the Legislature as this bill).

e. During the first five years after the approval of the applicable producer's product stewardship plan pursuant to section 8 of P.L. , c. (C.) (pending before the Legislature as this bill), single-use plastic packaging used solely to contain or wrap uncooked meat, fish, or poultry shall be exempt from the provisions of this section. After the initial five-year exemption period, the producer may apply to the department for an additional five-year exemption period pursuant to this subsection. The department shall grant an additional exemption if the producer demonstrates to the department's satisfaction that recycling infrastructure is not available to sufficiently handle the single-use plastic packaging.

7. (New section) a. No later than 18 months after the completion of the Statewide needs assessment pursuant to section 5 of P.L. , c. (C.) (pending before the Legislature as this bill), the producer responsibility organization and each non-participating producer shall develop, in consultation with appropriate stakeholders, including, but not limited to, producers, local governments, service providers, appropriate nonprofit organizations, and residents, a product stewardship plan. A PRO or producer, as applicable, shall submit a draft of its product stewardship plan to the Advisory Council on Solid Waste Management established pursuant to section 7 of P.L.1970, c.39 (C.13:1E-7) for review and comment, prior to submitting the plan to the department. The council shall provide the PRO or producer, as applicable, with written comments on the draft stewardship plan within 60 days after receipt thereof. The PRO or producer, as applicable, shall consider the comments and may incorporate these comments into the stewardship plan. The PRO or producer, as applicable, shall submit the finalized product stewardship plan to the department within 120 days after receipt of the council's comments, and the department shall review the plan for compliance with the provisions of P.L. , c. (C.) (pending before the Legislature as this bill).

b. A product stewardship plan developed pursuant to this section shall:

(1) identify, and provide contact information for, each producer participating in the plan;

(2) include a comprehensive list of the covered products that are covered by the plan, including, as applicable, the brand names of any such products;

(3) identify the means, methods, processes, procedures, systems, and strategies that will be used by participating producers to: (a) reduce, through product design modifications and program innovation, the amount of material that is used for each covered product and the amount of waste resulting from the use of each covered product; (b) facilitate and promote the prompt and efficient collection of discarded covered products throughout the State in a manner that is as, or more, convenient for consumers than the other collection programs available prior to the implementation of the product stewardship plan; (c) transport discarded covered products to authorized storage and recycling facilities; and (d) facilitate the reuse of discarded covered products for alternate second-life purposes, and the processing and recycling of discarded covered products that cannot be reused for alternate second-life purposes;

(4) identify the methods that will be used by participating producers to meet the source reduction and recycling goals established pursuant to section 6 of P.L. , c. (C.) (pending before the Legislature as this bill);

(5) describe the ways in which existing municipal solid waste collection and recycling infrastructure will be used to implement the stewardship plan, or, if existing infrastructure will not be used, provide an explanation as to why it is necessary to establish separate infrastructure, as well as a description of how the separate infrastructure system will function, and an indication of the date by which the separate infrastructure system is expected to commence operations;

(6) describe the ways in which the participating producers will work with existing service providers throughout the State to effectuate the collection, transportation, reuse, and recycling of covered products, in accordance with environmentally sound management practices, describe the system that will be used to reimburse those service providers for the services provided pursuant to subsection e. of this section, and identify the name and address of all authorized service providers that will be directly utilized pursuant to the plan;

(7) certify that participating producers will use open, competitive, and fair procurement practices, in compliance with the "Local Public Contracts Law," P.L.1971, c.198 (C.40A:11-1 et seq.), when directly entering into contractual agreements with local governments and other service providers pursuant to the stewardship plan;

(8) describe the process that was used, during the development of the stewardship plan, to receive, consider, and implement the comments of various stakeholders, as well as the nature of stakeholder comments received during the plan development period, and the extent to which the stakeholders' comments were incorporated into the stewardship plan;

(9) describe the means and methods that will be used by the PRO or producer, as applicable, to facilitate public outreach, education, and communication with respect to the stewardship plan, in accordance with the provisions of section 11 of P.L. , c. (C.) (pending before the Legislature as this bill);

(10) describe how the stewardship plan will be administered, and identify the staff members who will be responsible for ensuring proper administration of the plan;

(11) include a budget that provides for the implementation of the stewardship plan developed pursuant to the provisions of this subsection and subsection c. of this section, and any rules and regulations adopted by the department;

(12) include a description of the fee system developed pursuant to subsection f. of this section and the annual fee to be imposed on each producer;

(13) describe the amount, measured by average weight and volume of packaging per product, and nature of packaging sold by the producer responsibility organization's members, in order to establish a baseline for the purposes of complying with the requirements of section 6 of P.L. , c. (C.) (pending before the Legislature as this bill);

(14) identify nonresidential locations in the State from which the PRO or producer, as applicable, will collect and recycle materials to help achieve its performance goals, including public places, K-12 schools, and government buildings where personal consumption items can be collected but are not currently served by recycling programs;

(15) develop a list of covered products that are widely recyclable in the State, based on the availability of recycling services, collection and processing infrastructure, and end markets for covered products, as determined by the needs assessment. The PRO or producer, as applicable, shall update the list and submit any updates for inclusion on the list in its annual report, based on improvements in recycling and processing and in end markets. The PRO or producer, as applicable, shall consult the Advisory Council on Solid Waste Management established pursuant to section 7 of P.L.1970, c.39 (C.13:1E-7) on any updates to the list. Any updates to the list shall be approved by the department; and

(16) describe how the PRO or producer, as applicable, will provide a PRO or a producer with the option to purchase recycled materials from materials recovery facilities or similar entities at market prices if producers are interested in obtaining recycled feedstock directly from these entities to achieve minimum postconsumer recycled content rates.

c. Each product stewardship plan shall include a budget designed to fully fund the costs necessary to implement the provisions of the plan. The budget shall identify, at a minimum:

(1) the amount of funding needed and available to finance actions and investments identified in the product stewardship plan and actions and investments designed to address the issues identified in a Statewide needs assessment carried out pursuant to section 5 of P.L. , c. (C.) (pending before the Legislature as this bill); and

(2) the costs actually or expected to be incurred:

(a) by local governments, service providers, and other collection programs in association with the implementation of the product stewardship plan and the provisions of P.L. , c. (C.) (pending before the Legislature as this bill);

(b) by the PRO for the reimbursement of service providers for services provided under the plan;

(c) in association with consumer outreach and education efforts undertaken as part of the product stewardship plan;

(d) in association with the transportation of covered products to a recycling center, broker, or viable and responsible end market;

(e) in association with the cleaning, sorting, aggregating, and baling of covered products, as necessary to bring those materials to a viable and responsible end market;

(f) in association with the administration and operation of the producer responsibility organization; and

(g) in association with the surcharge imposed pursuant to section 10 of P.L. , c. (C.) (pending before the Legislature as this bill).

d. The budget developed under this section shall be evaluated by an independent financial auditor, as designated by the department, to ensure that the budget is sufficient to cover all of the costs associated with implementation of the stewardship plan.

e. (1) A product stewardship plan shall provide a methodology for reimbursement to service providers that provide collecting, transferring, transporting, sorting, processing, recovering, preparing, reuse, recycling, composting, or other waste-reduction services for covered materials, exclusive of exempt materials. The methodology shall consider estimated revenue received by service providers from the sale of materials based upon relevant material indices and incorporate relevant cost information identified by the needs assessment carried out pursuant to section 5 of P.L. , c. (C.) (pending before the Legislature as this bill). Reimbursement rates shall be annually updated and shall reflect the net costs expended by service providers, at a minimum. Reimbursement rates shall be established equivalent to net costs as established by a methodology in an approved plan as follows:

(a) no less than 50 percent of the net cost no later than three years after the date of plan approval;

(b) no less than 75 percent of the net cost no later than four years after the date of plan approval; and

(c) no less than 90 percent of the net cost no later than five years after the date of plan approval, and each year thereafter.

(2) Reimbursement rates shall be based on the following, as applicable to the services provided:

(a) the cost to collect covered materials for recycling, a proportional share of composting, or reuse, adjusted to reflect conditions that affect those costs, varied by region or jurisdiction in which the services are provided, including but not limited to:

(i) the number and type of persons or locations that are serviced by the service provider;

(ii) the population density of the service area;

(iii) the collections methods employed;

(iv) the distance traveled by collection vehicles to consolidation or transfer facilities; to reuse, recycling, or composting facilities; and to responsible end markets;

(v) other factors that may contribute to regional or jurisdictional cost differences;

(vi) the proportion of compostable materials within all source-separated compostable materials collected or managed through composting; and

(vii) the general quality of the materials collected by the service provider;

(b) the cost to transfer collected covered products from consolidation or transfer facilities to reuse, processing, recycling, or composting facilities or to responsible end markets;

(c) the cost to:

(i) sort and process covered products for sale or use and remove contamination from the materials by a recycling or composting facility, less the average fair market value for that covered material based on market indices for the region; and

(ii) manage contamination removed from collected covered products;

(d) the administrative costs of service providers, including education, public awareness campaigns, and outreach program costs as applicable; and

(e) the costs of covered services for a refill system or covered services provided for reusable covered products and management of contamination.

(3) A service provider may retain all revenue from the sale of covered products. Nothing in P.L. , c. (C.) (pending before the Legislature as this bill) shall restrict a service provider from charging a fee for services, to the extent that reimbursement from a producer responsibility organization does not cover all costs of services, including continued investment and innovation in operations, operating profits, and returns on investments required by a service provider to provide sustainability of the services.

f. A PRO or producer, as applicable, shall annually raise sufficient revenue to fully fund all costs identified in its budget. For a PRO, the revenue shall be raised through a system of fees imposed on producers that are members of a producer responsibility organization. The fee system shall impose fees on producers in proportion to the amount, measured by weight, of covered products sold, offered for sale, imported, or distributed in or into the State by the producer. In addition, the fee system shall impose fees that are proportional to the environmental impact of the covered products, consistent with the following provisions:

(1) covered products that are certified as being reusable or reused shall be levied the lowest fee possible that covers the cost of the product's reuse system;

(2) covered products that are composed of recycled content, are recyclable, or are compostable shall be levied a reduced fee;

(3) the fees shall be inversely proportional to the percentage of recycled content in the products, and the ease of recycling the products;

(4) the fees shall be proportional to the amount of virgin material used in the products, and the percentage of non-compostable materials, including plastic, in the product;

(5) the presence of hazardous materials in the products, as identified by the Department of Health or the department, shall be associated with a higher fee; and

(6) the incorporation of elements, including, but not limited to, inks, labels, and adhesives, that prevent an otherwise recyclable or compostable product from being recyclable or compostable, as applicable, shall be associated with a higher fee.

g. A product stewardship plan may include a system to credit producers for source reduction efforts carried out during the five-year period immediately preceding the baseline year established pursuant to subsection a. of section 6 of P.L. , c. (C.) (pending before the Legislature as this bill). The credit system, and the associated source reduction efforts, shall be documented and described in detail in the product stewardship plan and shall take into consideration the environmental impacts of the source reduction efforts as follows:

(1) switching from single-use packaging products to a reusable or refillable format shall be granted the highest credit;

(2) switching from non-recyclable packaging products to recyclable or compostable materials shall be granted a lower credit;

(3) reducing the amount of packaging, measured by average weight and volume of packaging per product sold, offered for sale, or distributed into the State shall be granted a lower credit; and

(4) switching from packaging products that were recyclable or compostable to a single-use plastic material shall be excluded from the credit system.

8. (New section) a. Not more than 120 days after receipt of a completed product stewardship plan, submitted pursuant to section 7 of P.L. , c. (C.) (pending before the Legislature as this bill), the commissioner shall approve, conditionally approve, or disapprove the plan and provide written notice of the determination to the PRO or producer, as applicable. If the commissioner does not provide written notice of the determination made pursuant to this section within the timeframe specified by this subsection, the plan shall be deemed to have been approved, and the PRO or producer, as applicable, shall proceed to implement the plan as provided by paragraph (1) of subsection c. of this section. In making a determination pursuant to this section, the commissioner may solicit information from the representatives of recycling facilities and other stakeholders as the commissioner deems appropriate.

b. A stewardship plan shall not be approved, pursuant to this section, unless the commissioner determines that:

(1) the PRO or producer, as applicable, has engaged in satisfactory consultation with stakeholders in the development of the plan;

(2) the plan adequately addresses all of the elements described in subsection b. of section 7 of P.L. , c. (C.) (pending before the Legislature as this bill) in sufficient detail to demonstrate that the objectives of the plan will be met; and

(3) the plan contains an adequate financing mechanism, developed pursuant to subsection f. of section 7 of P.L. , c. (C.) (pending before the Legislature as this bill), and a budget that has been verified by an independent financial auditor.

c. (1) If a product stewardship plan is approved pursuant to this section, the PRO or producer, as applicable, shall implement the approved plan within 90 days after receipt of the commissioner's written notice or after the expiration of the 120-day period established by subsection a. of this section, as the case may be, or within another timeframe agreed to by the commissioner.

(2) If a product stewardship plan is conditionally approved pursuant to this section, the commissioner's written notice shall specify the conditions that are to be satisfied in order for the plan to be deemed approved pursuant to P.L. , c. (C.) (pending before the Legislature as this bill). The PRO or producer, as applicable, shall implement the conditionally approved plan, in accordance with the conditions specified in the notice, either within 90 days after receipt of the commissioner's notice or within another timeframe agreed to by the commissioner.

(3) If a product stewardship plan is disapproved pursuant to this section, the commissioner's written notice shall be accompanied by a detailed statement describing the reasons for disapproval. Not more than 30 days after receipt of the commissioner's notice and accompanying statement of the reasons for disapproval, the PRO or producer, as applicable, shall submit a revised product stewardship plan to the commissioner, who shall approve, conditionally approve, or disapprove of the revised plan in accordance with the provisions of subsection a. of this section.

d. Not more than 90 days after approving a product stewardship plan pursuant to this section, or any revisions thereto, the commissioner shall post the plan at a publicly accessible location on the department's Internet website, together with a list of the producers participating in the plan and a list of the products covered thereunder.

e. (1) A stewardship plan approved pursuant to this section shall be reviewed and updated by the PRO or producer, as applicable, and reapproved by the commissioner, at least once every five years, in accordance with the procedures specified in this section.

(2) Notwithstanding the provisions of paragraph (1) of this subsection to the contrary, the commissioner may, at any time, review a previously approved product stewardship plan to determine whether the plan is being implemented in accordance with the provisions of P.L. , c. (C.) (pending before the Legislature as this bill). If the commissioner, at any time, finds that the approved plan, as implemented, is deficient, the commissioner may order the PRO or producer, as applicable, to incorporate modifications to the plan or to the implementation thereof, as may be necessary to ensure that the plan, as implemented, fully complies with the provisions of P.L. , c. (C.) (pending before the Legislature as this bill).

9. (New section) a. No later than 18 months after the completion of the Statewide needs assessment pursuant to section 5 of P.L. , c. (C.) (pending before the Legislature as this bill), and annually thereafter, a service provider seeking reimbursement for services provided under an approved product stewardship plan pursuant to section 7 of P.L. , c. (C.) (pending before the Legislature as this bill) shall register with the department by submitting the following information:

(1) the contact information for a person representing the service provider;

(2) the address of the service provider; and

(3) if applicable to services provided, a report of the total amount billed for collection, processing services, and transfer station operations provided during the preceding calendar year and, when possible, values shall be separated for collection, transfer, and processing.

b. A service provider receiving reimbursement or funding under an approved product stewardship plan shall:

(1) provide collecting, transferring, transporting, sorting, processing, recovering, preparing, reuse, recycling, composting, or other waste-reduction services for covered products, as applicable to the services offered by, and the service area of, the service provider;

(2) register with the department pursuant to subsection a. of this section;

(3) submit invoices to the producer responsibility organization for reimbursement for services rendered as provided in section 7 of P.L. , c. (C.) (pending before the Legislature as this bill);

(4) meet any performance standards established in the applicable approved product stewardship plan;

(5) ensure that covered products are sent to responsible end markets;

(6) provide documentation to the producer responsibility organization on the amounts of covered products, measured by weight, types of covered products, and volumes of materials processed, sorted by service method;

(7) display the service provider's price, minus the reimbursement from the producer responsibility organization, as determined in section 7 of P.L. , c. (C.) (pending before the Legislature as this bill), when invoicing customers. The balance is what the service provider may charge the customer; and

(8) comply with all other applicable requirements of P.L. , c. (C.) (pending before the Legislature as this bill).

10. (New section) a. There is established the "Packaging and Paper Reduction and Recycling Fund" as a separate, non-lapsing fund in the Department of the Treasury. The "Packaging and Paper Reduction and Recycling Fund" shall be credited with all surcharges, interest, penalties, and other amounts collected and paid to the Division of Taxation in the Department of the Treasury pursuant to this section. Moneys in the "Packaging and Paper Reduction and Recycling Fund" shall be expended only to: (1) fund efforts identified in a Statewide needs assessment carried out pursuant to section 5 of P.L. , c. (C.) (pending before the Legislature as this bill), in the form of grants or low-interest loans issued by the department; (2) to administer or enforce the provisions of sections 1 through 17 of P.L. , c. (C.) (pending before the Legislature as this bill), including the transfer of moneys into the General Fund to repay moneys expended by the department or any other State agency during fiscal years prior to the deposit of moneys in the fund; or (3) to otherwise implement an approved product stewardship plan. Prior to making an expenditure from the fund, the department shall consult with the producer responsibility organization approved pursuant to P.L. , c. (C.) (pending before the Legislature as this bill) and shall follow the recommendations of the producer responsibility organization regarding expenditures from the fund, provided that the department determines that the expenditures are in the public interest, and that any producer responsibility organization seeking grant moneys from the fund is in compliance with the financial responsibility provisions of paragraph (3) of subsection d. of section 4 of P.L. , c. (C.) (pending before the Legislature as this bill).

b. Pending the use thereof pursuant to the provisions of this section, the monies deposited in the fund shall be held in interest-bearing accounts in public depositories, as defined pursuant to section 1 of P.L.1970, c.236 (C.17:9-41), and may be invested or reinvested in such securities as are approved by the State Treasurer. Interest or other income earned on monies deposited into the fund shall be credited to the fund for use as set forth in P.L. , c. (C.) (pending before the Legislature as this bill) for other monies in the fund.

c. Commencing 30 months after the completion of the Statewide needs assessment pursuant to section 5 of P.L. , c. (C.) (pending before the Legislature as this bill), each producer responsibility organization and non-participating producer shall pay an annual surcharge as assessed by the Director of the Division of Taxation in the Department of the Treasury, to be deposited in the "Packaging and Paper Reduction and Recycling Fund." The total amount of the surcharge shall be the lesser of:

(1) the amount of funding required during the next fiscal year to fund the costs of solid waste and recycling infrastructure and systems upgrades needed for producers to meet the requirements of section 6 of P.L. , c. (C.) (pending before the Legislature as this bill), as determined in the Statewide needs assessment carried out pursuant to section 5 of P.L. , c. (C.) (pending before the Legislature as this bill), plus the amount needed to administer and enforce P.L. , c. (C.) (pending before the Legislature as this bill) during the next fiscal year; and

(2) $120 million.

d. The amount owed by each producer responsibility organization and non-participating producer shall be a prorated proportion of the total amount, based on the market share of covered products sold, offered for sale, imported, or distributed in or into the State by a producer responsibility organization's members or the non-participating producer, as applicable, as determined by the department.

e. On or before March 1 of each year beginning six years after the effective date of P.L. , c. (C.) (pending before the Legislature as this bill), the department shall transmit, to the Director of the Division of Taxation in the Department of the Treasury, documentation identifying the name and address of each producer responsibility organization and non-participating producer who is liable for the surcharge imposed under this section and the amount of the surcharge to be assessed against each such person; and providing a contact number for a department staff member who is able to respond to questions about the surcharge. The director shall transmit, to each producer responsibility organization and non-participating producer who is liable for the surcharge imposed under this section, a written determination to that effect.

f. Moneys appropriated from the "Packaging and Paper Reduction and Recycling Fund" shall not replace or reduce the allocation of any other funding.

11. (New section) a. A PRO or non-participating producer shall conduct public outreach and provide consumers with educational and informational materials, in a form and manner prescribed by the department, related to the applicable product stewardship plan and the services provided thereunder. The PRO and producers shall also respond to questions, and address concerns, that are directly raised by consumers in association with the implementation of the stewardship plan.

b. The outreach conducted, and the educational and informational materials provided, under this section, shall:

(1) provide information on the proper end-of-life management of discarded covered products, including the end-of-life recycling and other environmentally sound disposal options that are available under the stewardship plan, as well as the location and availability of curbside and drop-off collection opportunities;

(2) provide instructions to enable consumers to carry out the recycling or composting of discarded covered products, which instructions shall be easily accessible, easy to understand, and, to the extent practicable, applicable on a Statewide basis, taking into account the differences among local laws and processing capabilities;

(3) describe the environmental impact associated with the improper disposal of covered products, and encourage consumers to avoid the littering of discarded covered products;

(4) notify consumers that producers will be responsible for covering the costs of implementing the stewardship plan; and

(5) provide consumers with any other information required by the department.

c. The public outreach and education program established pursuant to subsection a. of this section shall:

(1) utilize all available forms of media, including, but not limited to, television, radio, print media, signage, the Internet, and social media, to provide information directly to consumers in the State;

(2) be coordinated with the various municipalities in the State and incorporate electronic, print, web-based, and social media elements that individual municipalities may elect to use, at their discretion, to provide education directly to their residents;

(3) to the extent deemed necessary and appropriate, provide for producers to affix, to their covered products, a label that contains information necessary to help consumers responsibly manage and recycle the covered products at the end of their useful life. A producer may satisfy this requirement through the use of a quick-response (QR) code, provided that the code directs consumers to an Internet website that contains information that is up-to-date and specific to New Jersey; and

(4) to the extent practicable, be coordinated with other similar public outreach and education programs in the State, as necessary to avoid consumer confusion and facilitate the consolidated use of available resources.

d. In addition to engaging in public outreach and education, as required by subsection a. of this section, a PRO or non-participating producer shall be authorized to provide retailers with educational and informational materials related to a product stewardship plan, the services provided thereunder, and the role of retailers in facilitating the successful implementation of the plan. The educational and informational materials provided to a retailer under this subsection may include, but need not be limited to, printed materials, signage, templates of materials that can be reproduced by retailers and provided thereby to consumers at the time of a product's purchase, and advertising materials that promote consumer participation in the product stewardship plan.

12. (New section) a. Not more than one year after an approved product stewardship plan is implemented pursuant to subsection c. of section 8 of P.L. , c. (C.) (pending before the Legislature as this bill), and annually thereafter, a PRO or non-participating producer, as applicable, shall submit a written report to the department evaluating the implementation of the plan. Each annual report shall include, but need not be limited to, the following information:

(1) a list of the producers participating in the plan and the products covered under the plan;

(2) a description of the methods used to collect, transport, reuse, or recycle discarded covered products under the stewardship plan, in accordance with environmentally sound management practices;

(3) the total amount, measured by weight, of discarded covered products collected under the stewardship plan;

(4) the total amount, measured by weight, of collected covered products that have been disposed under the stewardship plan, by method of disposition, including reuse, recycling, and disposal in accordance with environmentally sound management practices;

(5) the total cost of implementing the stewardship plan, as determined by an independent financial audit, including separate figures for the costs of collection, transportation, reuse, recycling, disposal, outreach, and any other activities that involved the expenditure of funds under the stewardship plan;

(6) samples of the educational materials that have been provided, to consumers and retailers pursuant to section 11 of P.L. , c. (C.) (pending before the Legislature as this bill), together with an evaluation of the methods used to disseminate those materials and an assessment of the effectiveness of those materials, including associated levels of waste prevention and reuse or recycling that have been evidenced since outreach efforts were commenced pursuant to section 11 of P.L. , c. (C.) (pending before the Legislature as this bill);

(7) an evaluation of the effectiveness of the stewardship plan, including the PRO's progress in meeting the performance targets established by section 6 of P.L. , c. (C.) (pending before the Legislature as this bill), and any steps necessary to improve the plan's effectiveness; and

(8) any other information required by the commissioner.

b. Within 90 days after receipt of each annual report submitted pursuant to this section, the commissioner shall:

(1) review the report;

(2) post the report on the department's Internet website; and

(3) prepare, and post on the department's Internet website, a summary report describing the progress that is being made under the stewardship plan and any corrective action ordered by the commissioner pursuant to P.L. , c. (C.) (pending before the Legislature as this bill).

c. The department shall not disclose any financial, production, or sales data reported by a producer pursuant to this section, except that the department may disclose such data in aggregate or summary format, provided that the producers and their financial, production, or sales data are not specifically identified, and provided that the summary omits any reference to unique characteristics from which the identities of individual producers might be inferred or otherwise ascertained.

13. (New section) a. Whenever the commissioner finds that a person has violated any provision of P.L. , c. (C.) (pending before the Legislature as this bill), any rule or regulation adopted pursuant thereto, or any provision of a stewardship plan approved thereunder, or has knowingly made a false statement, representation, or certification in any application, record, plan, or other document filed or required to be maintained pursuant to P.L. , c. (C.) (pending before the Legislature as this bill), the commissioner may:

(1) issue an order, in accordance with subsection b. of this section, requiring the violator to comply with the provisions of P.L. , c. (C.) (pending before the Legislature as this bill), the rules or regulations adopted pursuant thereto, or the stewardship plan approved thereunder, as the case may be;

(2) bring a civil action in accordance with subsection c. of this section;

(3) levy a civil administrative penalty in accordance with subsection d. of this section;

(4) bring an action for a civil penalty in accordance with subsection e. of this section; or

(5) notify the public of a producer that is not in compliance with the requirements of P.L. , c. (C.) (pending before the Legislature as this bill).

Pursuit of any of the remedies specified under this section shall not preclude the seeking of any other remedy specified.

b. Whenever the commissioner finds that a person has violated P.L. , c. (C.) (pending before the Legislature as this bill), any rule or regulation adopted pursuant thereto, or any provision of a stewardship plan approved thereunder, the commissioner may issue an administrative enforcement order to the person: specifying the provision or provisions that the person has violated; citing the action that constituted the violation; requiring the person's compliance with the provision violated; and giving notice of the person's right to a hearing on the matters contained in the administrative enforcement order. The person subject to the order shall have 20 calendar days from receipt of the order within which to deliver to the commissioner a written request for a hearing. After the hearing, and upon finding that a violation has occurred, the commissioner may issue a final order. If no hearing is requested, the order shall become final after the expiration of the 20-day period. A request for hearing shall not automatically stay the effect of the order.

c. The commissioner shall be authorized to institute a civil action in Superior Court for appropriate relief from any violation of the provisions of P.L. , c. (C.) (pending before the Legislature as this bill), or of any rule or regulation adopted pursuant thereto, or of a stewardship plan approved thereunder. Such relief may include, singly or in combination:

(1) a temporary or permanent injunction;

(2) recovery of the reasonable costs of any investigation or inspection that led to the discovery of the violation, and for the recovery of the reasonable costs of preparing and bringing a civil action commenced under this subsection;

(3) recovery of reasonable costs incurred by the State in removing, correcting, or terminating the adverse effects resulting from the violation for which a civil action has been commenced and brought under this subsection; and

(4) recovery of compensatory damages caused by a violation for which a civil action has been commenced and brought under this subsection. Assessments under this subsection shall be paid to the State Treasurer, except that compensatory damages may be paid by specific order of the court to any persons who have been aggrieved by the violation.

d. (1) The commissioner shall be authorized to assess a civil administrative penalty of not less than $5,000 nor more than $10,000 for each violation, provided that each day during which the violation continues shall constitute an additional, separate, and distinct offense. In assessing a civil administrative penalty, the commissioner shall consider the severity of the violation, the measures taken to prevent further violations, and whether the penalty will act as an appropriate deterrent.

(2) Prior to the assessment of a civil administrative penalty under this subsection, the person committing the violation shall be notified by certified mail or personal service that the penalty is being assessed. The notice shall identify the section of the statute, rule, regulation, or order, or the provision of the stewardship plan, that was violated; recite the facts alleged to constitute a violation; state the basis for the amount of the civil administrative penalties to be assessed; and affirm the rights of the alleged violator to a hearing. The ordered party shall have 35 days from receipt of the notice within which to deliver to the commissioner a written request for a hearing. After the hearing and upon finding that a violation has occurred, the commissioner may issue a final order after assessing the amount of the fine specified in the notice. If no hearing is requested, the notice shall become a final order after the expiration of the 35-day period. Payment of the assessment is due when a final order is issued or the notice becomes a final order.

(3) The authority to levy an administrative order is in addition to all other enforcement provisions in P.L. , c. (C.) (pending before the Legislature as this bill), and the payment of any assessment shall not be deemed to affect the availability of any other enforcement provisions in connection with the violation for which the assessment is levied. The department may compromise any civil administrative penalty assessed under this section in an amount and with conditions the department determines appropriate.

e. A person who violates any provision of P.L. , c. (C.) (pending before the Legislature as this bill), or any rule or regulation adopted pursuant thereto, or the provisions of a stewardship plan approved thereunder, or an administrative order issued pursuant to subsection b. of this section, or a court order issued pursuant to subsection c. of this section, or who fails to pay a civil administrative penalty in full pursuant to subsection d. of this section, or who knowingly makes any false or misleading statement on any application, record, report, or other document required to be submitted to the department, shall be subject, upon order of a court, to a civil penalty not to exceed $10,000 per day of the violation, and each day during which the violation continues shall constitute an additional, separate, and distinct offense. Any civil penalty imposed pursuant to this subsection may be collected with costs in a summary proceeding pursuant to the "Penalty Enforcement Law of 1999," P.L.1999, c.274 (C.2A:58-10 et seq.), or may be collected in a civil action commenced by the commissioner. In addition to any penalties, costs, or interest charges, the Superior Court, or the municipal court as the case may be, may assess against the violator the amount of economic benefit accruing to the violator from the violation.

f. All penalties collected by the department pursuant to P.L. , c. (C.) (pending before the Legislature as this bill) shall be deposited into the "Packaging and Paper Reduction and Recycling Fund" established pursuant to section 10 of P.L. , c. (C.) (pending before the Legislature as this bill), and appropriated annually for the continued administration and enforcement of P.L. , c. (C.) (pending before the Legislature as this bill).

14. (New section) a. Except as provided in subsection b. of this section, an action undertaken by a producer or group of producers, which affects the types or quantities of covered products being recycled or the cost or structure of any collection or recycling program, shall not be deemed to constitute a violation of any State law relating to antitrust, restraint of trade, unfair trade practices, or the regulation of trade or commerce, so long as the action is necessary to plan for or implement the organized collection or recycling of covered products pursuant to P.L. , c. (C.) (pending before the Legislature as this bill).

b. The provisions of subsection a. of this section shall not apply to:

(1) any agreement establishing or affecting the price of a product; or

(2) any agreement restricting the output or production of a product or the geographic area or customers to which a product will be sold.

15. (New section) a. A covered product shall be exempt from the requirements of sections 1 through 17 of P.L. , c. (C.) (pending before the Legislature as this bill) if it:

(1) contains drugs, dietary supplements, medical devices, or cosmetics as those terms are defined in the Federal Food, Drug, and Cosmetic Act, 21 U.S.C. s.301 et seq.;

(2) is packaging for medical equipment or products used in medical settings, including associated components and consumable medical equipment;

(3) contains toxic or hazardous products regulated under the "Federal Insecticide, Fungicide, and Rodenticide Act," 7 U.S.C. s.136 et seq.;

(4) is manufactured for use in the shipment of hazardous materials and is: (a) prohibited from being manufactured with used material by federal packaging material specifications set forth in 49 C.F.R. s.178.509 and 49 C.F.R. s.178.522, (b) is subject to the testing standards set forth in 49 C.F.R. s.178.600 through 49 C.F.R. s.178.609, or (c) is subject to the recommendations of the United Nations on the transport of dangerous goods;

(5) is packaging for infant formula, as that term is defined in 21 U.S.C. s.321(z);

(6) is packaging for medical food, as that term is defined in 21 U.S.C. s.360ee(b)(3); or

(7) is packaging for drugs, biological products, parasiticides, medical devices, or in vitro diagnostics that are used to treat, or that are administered to, animals, and are regulated by the United States Food and Drug Administration pursuant to the Federal Food, Drug, and Cosmetic Act, 21 U.S.C. s.301 et seq., or by the United States Department of Agriculture pursuant to 21 U.S.C. ss.151-159, known as the Virus-Serum-Toxin Act.

b. A small producer shall be exempt from the provisions of P.L. , c. (C.) (pending before the Legislature as this bill).

c. The department may, as part of the rules and regulations adopted pursuant to section 22 of P.L. , c. (C.) (pending before the Legislature as this bill), establish additional exemptions for producers that do not exceed a minimum market share of covered products sold in or into the State.

16. (New section) a. There is established in the Department of Environmental Protection an Office of Plastics and Packaging Management. The office shall oversee the administration and enforcement of P.L. , c. (C.) (pending before the Legislature as this bill), P.L.2020, c.117 (C.13:1E-99.126 et al.), P.L.2021, c.391 (C.13:1E-99.135 et seq.), and any other law dealing with pollution from plastic and other packaging, and the deleterious environmental effects of the manufacture thereof, as determined by the commissioner.

b. (1) The office shall include an Inspector General, who shall have at least five years of experience in the enforcement of civil environmental laws or criminal law. The Inspector General shall be appointed by the commissioner, shall receive such salary as shall be provided by law, and shall devote their entire time and attention to the duties of the office. The Inspector General may be removed from office by the commissioner, for cause, upon notice and an opportunity to be heard.

(2) The Inspector General shall be entitled to call upon the assistance and services of any county prosecutor, law enforcement officer in the State, and any State, county, or local government official or employee for the purpose of carrying out the powers, functions and duties set forth in this subsection.

(3) The Inspector General, in consultation with the Director of the Division of Criminal Justice in the Department of Law and Public Safety, shall:

(a) establish a liaison and continuing communication regarding the enforcement of laws under the purview of the Office of Plastics and Packaging Management between the Department of Environmental Protection, the Department of Law and Public Safety, and such county and local governments as may be necessary to coordinate activities, share information, and provide any assistance necessary in overseeing enforcement of such environmental laws;

(b) formulate and evaluate proposals for legislative, administrative, and judicial initiatives to strengthen the enforcement of laws under the purview of the Office of Plastics and Packaging Management; and

(c) in connection with the enforcement of laws under the purview of the Office of Plastics and Packaging Management, act as the liaison for the Executive Branch of government with agencies involved in the enforcement of violations of environmental laws outside of the Executive Branch, including federal agencies.

c. No later than September 1 of each year, the commissioner shall provide an annual report to the Governor and, pursuant to section 2 of P.L.1991, c.164 (C.52:14-19.1), to the Legislature describing the activities of the Office of Plastics and Packaging Management for the preceding 12 months, including, but not limited to, the number of enforcement action taken and the aggregate amount of money collected in penalties.

17. (New section) a. There is established within the department a Toxic Packaging Task Force. The duties of the task force shall be to review the toxicity of packaging in the State, and to recommend to the department the designation of additional toxic substances which shall be subject to the same prohibitions as those substances listed in subsection d. of section 4 of P.L.1991, c.520 (C.13:1E-99.47).

b. The Toxic Packaging Task Force shall be composed of seven members as follows:

(1) the Commissioner of Environmental Protection, or the commissioner's designee, who shall serve as chair;

(2) two representatives of the packaging industry, appointed by the commissioner;

(3) two representatives of environmental organizations, appointed by the commissioner; and

(4) two members of the public with significant professional or academic expertise in public health and toxicology, one of whom shall be appointed by the President of the Senate and one of whom shall be appointed by the Speaker of the General Assembly.

c. Appointments to the task force shall be for a term of five years. An appointed member shall not serve consecutive terms. Any vacancy in the public membership of the council shall be filled, within six months after the date on which the vacancy occurs, in the same manner provided for the initial appointments.

d. The task force shall meet at least four times per year, at the call of the chair, to review and recommend to the department whether there are additional toxic substances or classes of toxic substances that should be subject to the same prohibitions as those substances listed in subsection c. of section 4 of P.L.1991, c.520 (C.13:1E-99.47).

e. No later than one year after the Toxic Packaging Task Force recommends to the department an additional substance to restrict pursuant to subsection d. of this section, the department may implement this recommendation by adopting rules and regulations in accordance with the "Administrative Procedure Act," P.L.1968, c.410 (C.52:14B-1 et seq.).

18. Section 7 of P.L.1970, c.39 (C.13:1E-7) is amended to read as follows:

7. a. There is hereby created in the department an Advisory Council on Solid Waste Management ~~which~~ . The purpose of the council shall be to: research, review, advise, provide recommendations and report to the commissioner on any issues related to waste management, sustainable waste prevention, source reduction, reuse and recycling practices including, but not limited to, existing, new, or emerging state of the art practices and technologies, economic considerations, market development, and any associated statutory or regulatory barriers or limitations to achieving a more sustainable waste management scheme. The councilshall consist of ~~14~~ 17members~~, four of whom shall be the President of the Board of Public Utilities, the Commissioner of Community Affairs, the Secretary of Agriculture and the Commissioner of Health, or their designees, who shall serve ex officio, and ten citizens of the State, four of whom shall be actively engaged in the solid waste collection, recycling or solid waste disposal industries, of whom one shall be a representative of the Institute for Scrap Recycling Industries who shall represent the scrap recycling or processing industry in the State, two health professionals of whom one shall be a representative of the New Jersey Hospital Association and the other a licensed practitioner selected from the medical or dental communities in the State who shall represent the regulated medical waste generators in the State, and four of whom shall be representing the general public to be appointed by the Governor, with the advice and consent of the Senate. The Governor shall designate a chairman and vice chairman of the council from the public members who shall serve at the will of the Governor.~~ as follows:

(1) the Commissioner of Environmental Protection, who shall serve ex officio, or the commissioner's designee;

(2) the Commissioner of Health, who shall serve ex officio, or the commissioner's designee; and

(3) the following 15 members of the public, appointed by the commissioner:

(a) two representatives of the solid waste and recycling collection industry;

(b) two representatives of the solid waste disposal industry;

(c) two members actively engaged in waste reduction or reuse activities;

(d) four members of the recycling industry, one from each of the Class A, Class B, Class C, and Class D regulated areas;

(e) one representative of an environmental justice organization;

(f) one representative of an environmental organization;

(g) one county recycling or solid waste coordinator;

(h) one municipal recycling coordinator; and

(i) one member representing a nonprofit organization that promotes recycling or waste reduction activities and sustainable materials management in the State.

b. The commissioner shall make appointments to the council no later than 90 days after the effective date of P.L. , c. (C.) (pending before the Legislature as this bill).All public members shall be appointed for terms of ~~four~~ threeyears. All appointed members shall serve after the expiration of their terms until their respective successors are appointed and shall qualify, and any vacancy occurring in the appointed membership of the council by expiration of term or otherwise, shall be filled in the same manner as the original appointment for the unexpired term only, notwithstanding that the previous incumbent may have held over and continued in office as aforesaid. Members shall be eligible for reappointment to the council.

c. Members of the council shall serve without compensation but shall be reimbursed for expenses actually incurred in attending meetings of the council and in performance of their duties as members thereof.

d. The council shall organize as soon as practicable following the appointment of its members and shall select a chairperson and a vice-chairperson from among its members, as well as a secretary who need not be a member of the council. A majority of the membership of the council shall constitute a quorum for the transaction of council business. The council shall meet at least quarterly or more frequently as determined by the chairperson and may hold stakeholder meetings or public hearings at the place or places it designates.

e. The council shall be entitled to request the assistance of the services of the employees of any State, county, or municipal department, board, bureau, commission, authority, or agency, any private individual, or entity as it may require and as may be available to it for its purposes. The Department of Environmental Protection shall provide staff support to the council.

(cf: P.L.1991, c.292, s.1)

19. Section 8 of P.L.1970, c.39 (C.13:1E-8) is amended to read as follows:

8. The Advisory Council on Solid Waste Management is empowered to:

a. Request from the commissioner such information concerning the Statewide solid waste management plan or district solid waste management plans as it may deem necessary;

b. Consider any matter relating to the improvement of the Statewide solid waste management plan or district solid waste management plans, and advise the commissioner thereon;

c. ~~From time to time submit~~ Submit, at least every five years, and more frequently if deemed in the public interest by the council,to the commissioner any recommendations which it deems necessary for the improvement of the Statewide solid waste management plan or district solid waste management plans;

d. ~~From time to time submit to the commissioner recommendations of any statutory and regulatory changes deemed necessary to implement the comprehensive State regulated medical waste management plan prepared by the Department of Environmental Protection and the Department of Health pursuant to section 13 of P.L.1989, c.34 (C.13:1E-48.13);~~ (Deleted by amendment, P.L. , c. (pending before the Legislature as this bill)

e. ~~From time to time submit~~ Submit, at least every five years, and more frequently if deemed in the public interest by the council,to the commissioner recommendations of any statutory and regulatory changes deemed necessary to implement the ~~State Recycling Plan~~ State's solid waste source reduction, reuse, and recyclinggoals;

f. ~~Study any regulations adopted by the department and the Department of Health concerning the management of regulated medical waste and make its recommendations for their improvement to the commissioner;~~ (Deleted by amendment, P.L. , c. (pending before the Legislature as this bill)

g. Study and investigate the state of the art and the technical capabilities and limitations of regulations concerning solid waste collection, disposal or recycling activities and report its findings and recommendations thereon to the commissioner;

h. Study and investigate the need for programs for the long-range technical support of source reduction, reuse, recycling, orsolid waste programs and ~~solid waste management~~plans, and report its findings and recommendations thereon to the commissioner;

i. Hold stakeholder discussions orpublic hearings annually or more frequently in regard to existing solid waste statutes and regulations and upon the state of the art and technical capabilities and limitations in solid waste collection, disposal, source reduction, reuse,or recycling activities and report its recommendations thereon to the commissioner;

j. Call and utilize focus groups, task forces, subcommittees, or subject matter experts to study and investigate specific issues related to source reduction, reuse, recycling and solid waste management and report its recommendations thereon to the commissioner;

k. Coordinate between local governments, recycling service providers, producer responsibility organizations, other stakeholders, and the department to address issues associated with the provisions of P.L. , c. (C.) (pending before the Legislature as this bill);

l. Act as a regulatory clearinghouse to aid participating producers with compliance with the provisions of P.L. , c. (C.) (pending before the Legislature as this bill);

m. Assist the department in reviewing relevant data to assess whether the recycling and source reduction requirements established pursuant to section 6 of P.L. , c. (C.) (pending before the Legislature as this bill) should be adjusted; and

n. Review and submit comments on product stewardship plans submitted to the council pursuant to section 7 of P.L. , c. (C.) (pending before the Legislature as this bill).

(cf: P.L.1991, c.292, s.2)

20. Section 4 of P.L.1991, c.520 (C.13:1E-99.47) is amended to read as follows:

4. a. On or after January 1, 1993, no person shall sell, offer for sale, or offer for promotional purposes in this State any package or packaging component which includes, in the package itself or in any packaging component, inks, dyes, pigments, adhesives, stabilizers or any other additives containing any lead, cadmium, mercury or hexavalent chromium which has been intentionally introduced as a chemical element during manufacturing or distribution as opposed to the incidental presence of any of these elements.

b. On or after January 1, 1993, no person shall sell, offer for sale, or offer for promotional purposes in this State any product contained in a package which includes, in the package itself or in any packaging component, inks, dyes, pigments, adhesives, stabilizers or any other additives containing any lead, cadmium, mercury or hexavalent chromium which has been intentionally introduced as a chemical element during manufacturing or distribution as opposed to the incidental presence of any of these elements.

c. The sum of the concentration levels of lead, cadmium, mercury or hexavalent chromium present in any package or packaging component, which shall constitute an incidental presence, shall not exceed the following levels:

(1) Not more than 600 parts per million by weight (0.06 % percent) after January 1, 1993;

(2) Not more than 250 parts per million by weight (0.025 % percent) after January 1, 1994;

(3) Not more than 100 parts per million by weight (0.01 % percent) after January 1, 1995.

As used in this section, "incidental :

"Incidentalpresence" means the presence or a regulated metal of a substanceas an unintended or undesired ingredient of a package or packaging component.

As used in this section, "intentionally "Intentionallyintroduced" means the deliberate use of a regulated heavy metal substanceto provide a desired characteristic, appearance, or quality. "Intentionally introduced" shall not include:

(1) Using a regulated metal lead, cadmium, mercury, or hexavalent chromiumas a processing agent or intermediate to impart certain chemical or physical changes during manufacturing, whereupon the incidental retention of a residue of a regulated metal lead, cadmium, mercury, or hexavalent chromiumin the final package or packaging component is neither desired nor deliberate, if the final package or packaging component is in compliance with this act the provisions of P.L.1991, c.520 (C.13:1E-99.44 et seq.); or

(2) Using recycled materials as feed stock for the manufacture of new packaging materials, where some portion of the recycled materials may contain amounts of the regulated metals if substance, provided thatthe new package or packaging component is in compliance with this act the provisions of P.L.1991, c.520 (C.13:1E-99.44 et seq.).

d. Commencing two years after the effective date of P.L. , c. (C.) (pending before the Legislature as this bill), no person shall sell, offer for sale, or offer for promotional purposes in this State any package or packaging component, or any product contained in a package, which contains, in the package itself or in any packaging component, ink, dye, pigment, adhesive, stabilizer or any other additive, any of the following substances, whether intentionally introduced or incidentally present:

(1) perfluoroalkyl and polyfluoroalkyl substances (PFAS);

(2) ortho-phthalates;

(3) bisphenols;

(4) halogenated and organophosphorus flame retardants (HFRS, OPFRS)

(5) non-detectable pigments including carbon black, except when the pigment is used as a pigment in printing inks used to print on packaging, labels, tags, or any component thereof;

(6) oxo-degradable additives including oxo-biodegradable additives;

(7) UV-328, 2-(2h-benzotriazol-2-yl)-4, 6-di-tert-pentylphenol, or any other ultraviolet light absorbers including benzophenone and its derivatives;

(8) short-, medium-, and long-chained chlorinated paraffins;

(9) toxic metals including lead, cadmium, mercury, and hexavalent chromium;

(10) antimony trioxide;

(11) formaldehyde;

(12) perchlorate;

(13) toluene; or

(14) vinyl chloride, including polyvinylidene chloride.

e. The department may, upon the recommendation of the Toxic Packaging Task Force established pursuant to section 17 of P.L. , c. (C.) (pending before the Legislature as this bill), designate additional substances to be prohibited from being included in packaging and packaging components by adopting rules and regulations in accordance with the "Administrative Procedure Act," P.L.1968, c.410 (C.52:14B-1 et seq.).

(cf: P.L.1997, c.307, s.2)

21. Section 5 of P.L.1991, c.520 (C.13:1E-99.48) is amended to read as follows:

5. a. Any package manufacturer, product manufacturer or distributor may, in accordance with rules or regulations adopted by the department pursuant to the "Administrative Procedure Act," P.L.1968, c.410 (C.52:14B-1 et seq.), claim an exemption from the provisions of section 4 of ~~this act~~ P.L.1991, c.520 (C.13:1E-99.47)for any package or packaging component meeting any of the following criteria:

(1) Those packages or packaging components labeled with a code indicating a date of manufacture prior to January 1, 1993; except that the labeling requirement may be waived by the department in those instances where it is not feasible or practical to label individual packages or packaging components provided that suitable alternative evidence of date of manufacture is furnished to the department;

(2) Those packages or packaging components used to contain alcoholic beverages, including liquor, wine, vermouth and sparkling wine, bottled prior to January 1, 1993;

(3) Those packages or packaging components which are glass containers with ceramic labeling used to contain pharmaceutical preparations; except that the exemption provided in this paragraph shall expire on January 1, 1995;

(4) Those packages or packaging components which are glass containers with ceramic labeling used to contain cosmetics; except that the exemption provided in this paragraph shall expire on January 1, 1995;

(5) Those packages or packaging components to which lead, cadmium, mercury or hexavalent chromium have been added in the manufacturing, forming, printing or distribution process in order to comply with health or safety requirements of federal law, provided that the package manufacturers of such package or packaging component shall petition the department for an exemption and receive approval from the department based upon a satisfactory demonstration that the criterion is met; provided that an exemption under this paragraph shall be for a period of no more than two years, except that the package manufacturer may apply to the department for renewals of the exemption for periods of no more than two years;

(6) Those packages or packaging components to which lead, cadmium, mercury or hexavalent chromium have been added in the manufacturing, forming, printing or distribution process for the use of which there is no feasible or practical alternative, provided that the package manufacturers of such package or packaging component shall petition the department for an exemption and receive approval from the department based upon a satisfactory demonstration that the criterion is met; provided that an exemption under this paragraph shall be for a period of no more than two years, except that the package manufacturer may apply to the department for renewals of the exemption for periods of no more than two years;

(7) Those packages or packaging components that would not exceed the maximum contaminant levels set forth in subsection c. of section 4 of ~~this act~~ P.L.1991, c.520 (C.13:1E-99.47)but for the addition of recycled materials; except that the exemption provided in this paragraph shall expire on January 1, 2000;

(8) Those packages or packaging components composed of metal and commonly referred to as "tin cans" that are used to contain food or food products intended for human consumption and that may exceed the maximum contaminant levels set forth in subsection c. of section 4 of ~~this act~~ P.L.1991, c.520 (C.13:1E-99.47)due to the incidental presence of lead as a naturally occurring chemical element in the metal that is unrelated to the manufacturing process;

(9) Those packages or packaging components composed of metal and commonly referred to as "tin cans" that are used to contain paint, chemicals or other nonfood products, to which lead has been added in the manufacturing process for the purposes of forming, soldering or sealing the can, or that may exceed the maximum contaminant levels set forth in subsection c. of section 4 of ~~this act~~ P.L.1991, c.520 (C.13:1E-99.47)due to the incidental presence of lead as a naturally occurring chemical element in the metal that is unrelated to the manufacturing process;

(10) Those packages or packaging components that are reused, provided that the related product is regulated under federal or State health or safety requirements and that the transportation of the related product is regulated under federal or State transportation requirements, and the disposal of the related product is performed according to federal or State radioactive or hazardous waste disposal requirements; provided that an exemption under this paragraph shall expire on January 1, 2000;

(11) Those packages or packaging components having a controlled distribution and reuse, provided that the manufacturers or distributors of such package or packaging component shall petition the department for an exemption and receive approval from the department, based on satisfactory demonstration that the environmental benefit of the controlled distribution and reuse is significantly greater as compared to the same package manufactured in compliance with the contaminant levels; provided that an exemption under this paragraph shall expire on January 1, 2000.

The manufacturer shall submit with the petition a plan that shall include:

(a) A means of identifying in a permanent and visible manner those reusable entities containing regulated metals for which an exemption is sought;

(b) A method of regulatory and financial accountability so that a specified percentage of the reusable entities manufactured and distributed to other persons are not discarded by those persons after use but are returned to the manufacturer or designee;

(c) A system of inventory and record maintenance to account for the reusable entities placed in, and removed from, service;

(d) A means of transforming returned entities, that are no longer reusable, into recycled materials for manufacturing or into manufacturing waste that are subject to existing federal or State laws or regulations governing manufacturing waste to ensure that these wastes do not enter the commercial or municipal waste stream; and

(e) A system of annually reporting to the commissioner changes to the system and changes in designees; or

(12) Those packages or packaging components that are glass or ceramic that have a vitrified decoration and when tested in accordance with the toxicity characteristic leaching procedure (TCLP) of the United States Environmental Protection Agency Test Method SW-846 does not exceed 1.0 ppm for cadmium and 5.0 ppm for lead; provided that an exemption under this paragraph shall expire on January 1, 2000.

The exemptions provided in paragraphs (8) and (9) shall expire on January 1, 1997, except that any exemption provided in paragraph (8) or (9) may be renewed by the department after this date for periods not to exceed two years. Any renewal granted by the department for the exemption provided in paragraph (8) or (9) shall be based on evidence furnished to the department that there is no feasible method to reduce the concentration levels of lead for the specified package or packaging component.

For the purposes of this subsection, a use for which there is "no feasible or practical alternative or substitute" means one in which the use of lead, cadmium, mercury or hexavalent chromium is essential to the protection, safe handling, or function of the contents of the package.

b. Any package manufacturer, product manufacturer or distributor claiming an exemption pursuant to subsection a. of this section shall maintain on file a written declaration of exemption for each specified package or packaging component for which an exemption is claimed. Copies of each declaration of exemption shall be furnished to the department upon its request and to members of the public in accordance with the provisions of section 14 of ~~this act~~ P.L.1991, c.520 (C.13:1E-99.57).

c. Any product contained in a package or packaging component for which an exemption is claimed may be sold by a retailer provided that the declaration of exemption claimed is valid and in accordance with the criteria provided in subsection a. of this section, as may be verified by the department pursuant to section 9 of ~~this act~~ P.L.1991, c.520 (C.13:1E-99.52)

d. Products regulated as a drug, medical device, or dietary supplement by the United States Food and Drug Administration under the federal "Food, Drug, and Cosmetic Act," 21 U.S.C. s.301 et seq., 21 C.F.R. s.3.2(e), or Pub.L.103-417, known as the Dietary Supplement Health and Education Act, and the packaging thereof, shall be exempt from the provisions of subsection d. of section 4 of P.L.1991, c.520 (C.13:1E-99.47).

e. Medical equipment or products used in medical settings, including associated components and consumable medical equipment shall be exempt from the provisions of subsection d. of section 4 of P.L.1991, c.520 (C.13:1E-99.47).

f. If a substance's use in packaging is preempted under the federal "Toxic Substances Control Act" 15 U.S.C. s.2601 et seq., that use shall be exempt from the provisions of P.L.1991, c.520 (C.13:1E-99.44 et seq.), provided that, if a substance's use in packaging is preempted only for a particular use in packaging or a particular type of packaging, the exemption provided by this subsection shall only apply to that particular use or packaging type.

g. A newspaper bag shall be exempt from the provisions of subsection d. of section 4 of P.L.1991, c.520 (C.13:1E-99.47) for a period of five years beginning on the effective date of P.L. , c. (C.) (pending before the Legislature as this bill). As used in this subsection, "newspaper bag" means a plastic bag used to package newspapers that are delivered, outside, to homes and businesses.

(cf: P.L.1997, c.307, s.3)

22. The Commissioner of Environmental Protection shall adopt rules and regulations, pursuant to the "Administrative Procedure Act," P.L.1968, c.410 (C.52:14B-1 et seq.), as may be necessary to implement the provisions of this act.

23. This act shall take effect immediately.

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